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Judgment Sheet

LAHORE HIGH COURT

RAWALPINDI BENCH RAWALPINDI

JUDICIAL DEPARTMENT

....

WRIT PETITION NO.1180 of 2022

RAHIL BUTT and 21 others

Versus

THE FEDERATION OF PAKISTAN Through Secretary Establishment
Division, Islamabad and 114 others

JUDGMENT

Dates of hearing:	<u>25.09.2024 & 16.04.2025</u>
Petitioners by:	Mr. S.A. Mahmood Khan Saddozai, Advocate.
Respondents No.1 to 4 by:	Mr. Zain Mansoor, Assistant Attorney General Pakistan.
Respondents No.5 to 8, 10, 11, 14, 16 to 19, 21, 23, 24, 26, 32, 34, to 39, 42 to 49, 54 to 57, 60, 62 to 67, 69 to 73, 76, 77, 79 to 86, 88, 90 to 95, 97, 98, 104 to 106, 108 & 112 to 115	Mr. Muhammad Ramzan Khan, Advocate.
Respondents No.9, 12, 13, 15, 20, 22, 25, 27 to 31, 32, 33, 40, 41, 50 to 53, 58, 59, 61, 68, 74, 75, 78, 87, 89, 96, 99 to 103, 107 & 109 to 111.	M/s Abdul Rahim Bhatti, Yasser Rahim Bhatti and Qaiser Rahim Bhatti, Advocates.

MIRZA VIQAS RAUF, J. The petitioners herein are employees of the Federal Government Educational Institution, Rawalpindi (hereinafter referred to as “**F.G.E.I.**”) and they were appointed as lecturers in pursuance to an advertisement published by respondent No.3 through the recruitment process conducted by the Federal Public Service Commission, Islamabad (hereinafter referred

to as “**Commission**”) in the year 2012. Through this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter referred to as “**Constitution**”), the petitioners are challenging the status of respondents No.5 to 115 (hereinafter referred to as “**respondents**”), being appointed without due process of law.

2. While responding the averments of writ petition the respondents departments as well as **respondents** submitted their respective reports/replies wherein the Establishment Division (respondent No.1) took the stance that Secretary Establishment is since not the appointing authority so no liability lies on the Establishment Division. It is asserted that the Establishment Division has only conveyed the recommendation of the cabinet sub-committee. The respondents No.2 & 3 being the concerned department (hereinafter referred to as “**Department**”) on the other hand pleaded that respondent No.3, being attached department of Ministry of Defence as per Schedule III of the Rules of Business, 1973 advertised some teaching posts on contract basis on 12th October, 2006. The process of recruitment was carried out strictly in accordance with law, rules and policy in furtherance whereof **respondents** were appointed who joined the department in 2007. It is stated that the contract period of **respondents** was extended from time to time and ultimately their services were regularized after approval accorded by the cabinet sub-committee in the year 2012. It is asserted that the petitioners joined the **Department** on 23rd October, 2012 after recommendation from **Commission**. Beside this the **Department** raised objections on the maintainability of the petition e.g.; being hit by laches, matter relates to terms and conditions of service and as it is barred in terms of Article 212 of the **Constitution**. The stance of the **Commission** on the other hand is that recruitment and selection in BS-16 and above posts falls within purview of **Commission** as per the Federal Public Service Commission Ordinance, 1977 (hereinafter referred to as “**Ordinance**”). The appointment of **respondents** on contract basis

against sanctioned posts in BS-16 and above were illegal and without seeking no objection certificate from the **Commission**. It is also stated that mandate of cabinet sub-committee was only supervisory and it was not vested with the powers of recruitment and selection by any manner. The cabinet sub-committee was constituted only for regularization of employees working against posts in BS-1 to BS-15. The **respondents** on the other hand resisted the petition seriously by submitting their respective reply/parawise comments canvassing therein that the petition is fraught with malafide, suffered with laches, hit by Article 212 of the **Constitution** as matter in issue relates to terms and conditions of service, lack of territorial jurisdiction, matter became past and closed transaction and with their regularization by the cabinet sub-committee, the status of the **respondents** is also protected under principle of *locus poenitentiae*.

3. Both the sides have addressed their respective arguments in the light of above assertions. Relevant record also perused with their assistance as well.

4. *Quo warranto* is a latin word. In the literal sense it means by what authority or warrant. The writ of *quo warranto* originates from English common law way back in 12th century. It was initially used by the crown to determine if someone was rightfully exercising a privilege or office granted by the crown, or if they were intruding on royal prerogatives. *Quo warranto* is a special form of legal action issued to resolve a dispute over whether a specific person has the legal right to hold the public office that he or she occupies. In simple words *quo warranto* is used to test a person's legal right to hold an office and not to evaluate the person's performance in the office. In legal parlance *quo warranto* refers to a prerogative writ issued by a court to inquire into the authority of a person holding a public office or exercising a public franchise. It essentially asks by what warrant and compels the person to demonstrate his/her right to hold the position or exercise the power. The writ in the form of *quo warranto* can be used to challenge the legality of an appointment or to determine if a person is rightfully exercising a public right. The

prime object and purpose of *quo warranto* is to challenge the legitimacy of a person's claim to a public office or franchise, for determining if the appointment or grant of the right was made in accordance with law so as to ensure that public offices are occupied by individuals with proper authority and that public franchises are exercised legally.

5. Article 199 of the **Constitution** recognizes multiple kind of writs alongwith writ of *quo warranto*, so as to determine the authority and legal right of a person to hold a public office. For ready reference and convenience excerpt is reproduced below :-

“199. (1) Subject to the Constitution, a High Court may, if it is satisfied that no other adequate remedy is provided by law,—

(a) -----

(i) -----

(ii) -----

(b) on the application of any person, make an order—

(i) -----

(ii) requiring a person within the territorial jurisdiction of the Court holding or purporting to hold a public office to show under what authority of law he claims to hold that office; or

;

;

;

The proceedings in terms of writ of *quo warranto* are in the nature of inquisitorial and not adversarial. It is not necessary that the person invoking writ of *quo warranto* should be aggrieved as is required in the case of writ of mandamus, certiorari or prohibition. Anybody can move for issuance of writ of *quo warranto* as a whistleblower but blowing of whistle must be for the benefit of public in general and not for the personal vengeance and gains with malafide intent. The very issuance of writ of *quo warranto* is dependent upon the judicial conscious of the court and it cannot be claimed as a matter of right by the person, approaching the court. The principle of equity and consciousness are the guiding factors for issuance of writ of *quo warranto* on the one hand and simultaneously court has to ensure that person holding the public office is legally entitled to hold such office and his status is not tainted with any nasty.

6. Before adverting to the other merits of the petition while keeping in mind the above noted elements, first of all I would like to deal with the preliminary objections raised with regard to maintainability of this petition. The first and foremost objection is related to the principle of laches. There is no cavil to the legal proposition that though no limitation is provided for filing a constitutional petition but it is to be brought within reasonable time, which ordinarily is reckoned as ninety days. Laches, however, cannot be equated with limitation. The effect of delay in filing the constitutional petition is to be analyzed on the basis of facts and circumstances of each case. There can be no second opinion that expiry of period of limitation creates a substantial right in favour of one party which cannot be swayed away in a mechanical manner unless strong valid reason for delay beyond the control of delinquent party have been put forth. The scheme of law, however, is bit different while dealing with laches, particularly in case of petition of *quo warranto* in terms of Article 199(1)(b)(ii) of the **Constitution**, requiring or calling a person holding public office to show under what authority of law he/she claims to hold the office, mere delay would not operate as a bar, for the reason that authority of the court to examine the validity of an appointment to a public office, on constitutional and legal grounds, cannot be abridged on technicalities. Moreover, in case of a writ of *quo warranto*, cause of action is a recurring one, as holder of a public office continues to occupy such public office. In the light of above analogy when the case of **respondents** is examined, it clearly manifests that they were appointed in the year 2007 on contract basis, were regularized in the year 2012 and holding their posts till date. The hurdle of laches thus would not come in the way of petitioners in the circumstances. Reliance to this effect can be placed on FARZAND RAZA NAQVI and 5 others versus MUHAMMAD DIN through Legal Heirs and others (2004 SCMR 400), MUHAMMAD SHAHID AKRAM versus GOVERNMENT OF THE PUNJAB through Chief Secretary and 3 others (2016 PLC (C.S.) 1335) and AAM LOG ITTEHAD through Secretary General and another versus The

ELECTION COMMISSION OF PAKISTAN through Secretary and 4 others
(PLD 2020 Sindh 616).

7. So far contention of learned counsel for the **respondents** that on account of posting of most of the **respondents** beyond the territorial limits of this Court, it lacks jurisdiction; suffice to observe that the **respondents** are the employees of **Department** whose office is located in Rawalpindi, the appointment letter as well as letter of regularization of services of the **respondents** was also issued within the territorial limits of this Court and furthermore most of the **respondents** are serving in Rawalpindi Division. Article 199(1)(b)(ii) of the **Constitution**, no doubt requires “*a person within the territorial jurisdiction of the court holding a public office to show under what authority of law he claims to hold office*” but the centre of emphasis is clearly the “public office” being held by a person within the territorial jurisdiction of the court. The sole constitutional concern emanating from Article 199(1)(b)(ii) of the **Constitution** is to protect the “public office” and more importantly the public institution behind it. The objection is thus apparently misconceived.

8. In somewhat similar circumstances in the case of Barrister SARDAR MUHAMMAD versus FEDERATION OF PAKISTAN and others (PLD 2013 Lahore 343) it was held as under :-

“21. With this background, it is easier to assess the span of territorial jurisdiction of this Court for the purposes of a writ of *quo warranto*. The focus is on the jurisdictional locale of the public office rather than the physical presence (i.e., residence or office) of person holding the office. The process of recruitment and appointment to the “public office” is under judicial review, therefore, geographical location of the individual holding the said office is of little significance. The real test is to see the geographical extent of the jurisdiction enjoyed by the “public office.” In this case the Act being a federal law, the three Members including the Chairman, exercise jurisdiction nationwide. The physical location of the place of work or residence of the “person” holding public office is insignificant and the territorial jurisdiction of the “public office” under the law is relevant. In the instant case, the appointment to public offices of Members and Chairman of PTA can, therefore, be challenged in any High Court in Pakistan. The following example further explains this point: Person A is appointed as Chairman, PTA, who is a resident of Quetta, Balochistan. Person B is appointed as Chairman, PTA

and is an overseas Pakistani, with no permanent residential address in Pakistan. Does it mean that writ of *quo warranto* against person A lies only before Balochistan High Court? while no High Court in the country can issue a writ against person B? The answer is a resounding "No." Only the jurisdictional extent of the "public office" under the law is to be seen to determine its territorial jurisdiction.

22. Even if the Act provided that the head office of Chairman PTA is in Islamabad it would still make no difference because the test is the territorial jurisdiction of the public office. The geographical jurisdiction of the "public office" is determined under the law that establishes the said public office. It is the same law that helps determine whether the public office falls with the territorial jurisdiction of a particular High Court. No person can be deprived of the constitutional remedy of *quo warranto*, under Article 199 of the Constitution, against a statutory or public sector institution that operates nationwide, on mere cosmetics and technicalities like the location of the place of work, head office or the residence of the incumbent to the public office.

23. In the present case Members and Chairman PTA enjoy nation-wide jurisdiction hence a nation-wide presence. These public offices, therefore, fall within the territorial jurisdiction of every High Court in the country. It would be different if the public office belonged to a provincial public or statutory authority with its jurisdiction limited to a Province. In such a case, the public offices of the said authority, will fall within the territorial jurisdiction of the High Court of the relevant Province. The foundational concept of territorial jurisdiction for the purposes of Article 199 has already been deliberated in detail in Messrs Sethi & Sethi Sons through Humayun Khan v. Federation of Pakistan through Secretary, Ministry of Finance, Islamabad and others (2012 PTD 1869) and LPG Association of Pakistan through Chairman v. Federation of Pakistan through Secretary, Ministry of Petroleum and Natural Resources, Islamabad and 8 others (2009 CLD 1498). The reasoning and logic of the above judgments has been simply extended to the writ of *quo warranto*."

After having an overview of the principles noted hereinabove it is concluded with clarity that the objection with regard to territorial jurisdiction is not only ill-founded but misdirected as well.

9. While adverting to the objection raised by learned counsel for the **respondents** that when once the **respondents** have been inducted into the service either wrongly or rightly, with their regularization, they cannot be deprived from such benefit even on the principle of "*locus poenitentiae*" as embodied in Section 21 of the General Clauses Act, 1897. "*Locus poenitentiae*" is a *latin* term used primarily in legal contexts, meaning "a place of repentance" or "an opportunity to withdraw." *Locus poenitentiae* is the power of receding till a decisive step is taken but it is not a principle of law

that order once passed becomes irrevocable and past and closed transaction. If the order is illegal then perpetual rights cannot be gained on the basis of such an illegal order. Even otherwise in terms of Section 21 of General Clauses Act, 1897 it can safely be inferred that the authority which can pass an order, is entitled to vary, amend, add to or to rescind that order, as *locus poenitentiae* is the power of receding till a decisive step is taken, but it is not a principle of law that order once passed becomes irrevocable and past and closed transaction. The scope and object of Section 21 of the General Clauses Act, 1897 is outlined by the Supreme Court of Pakistan in the case of GOVERNMENT OF THE PUNJAB, EDUCATION DEPARTMENT through Secretary Higher Education, Punjab Civil Secretariat Lahore and others versus MUHAMMAD IMRAN and others (2019 SCMR 643) as under: -

“10. Keeping in view the above deliberation, it is noted that there is a judicial consensus on the issues in hand in terms that;

I) The Authority which can pass order is entitled to vary, amend, add to or to rescind the same under section 21 of the General Clauses Act, 1897.

II) The jurisdiction to recall an earlier order is based on the principle of *locus poenitentiae*.

III) There is an exception to the principle of *locus poenitentiae* vesting power in an authority to recall its earlier order: if in pursuance of the order passed by the authority, an aggrieved person takes decisive steps, and changes his position.

IV) None can retain the benefits of a withdrawn order, claiming the protection of having taken a decisive step, when the very order passed by the authority is illegal, void or without lawful authority. In such circumstances, it would not matter, even if decisive steps have been taken by the person in pursuance of the illegal order passed by the authority. However, the pecuniary benefit accrued and already received by a person in pursuance of an illegal order passed by the competent authority cannot be recovered from him unless the benefiting order was obtained by the person through fraud, misrepresentation or concealment of material facts.”

Guidance in this respect can also be sought from (REGARDING PENSIONARY BENEFITS OF THE JUDGES OF SUPERIOR COURTS FROM THE DATE OF THEIR RESPECTIVE RETIREMENTS, IRRESPECTIVE OF THEIR LENGTH OF SERVICE AS SUCH JUDGES) (PLD 2013 Supreme Court 829) and MUHAMMAD NADEEM ARIF and others versus INSPECTOR-GENERAL OF POLICE, PUNJAB, LAHORE and others (2011 SCMR 408).

10. Attending one of the main limb of objections relating to maintainability of the petition that with the efflux of time, matter has become past and closed transaction and as such cannot be re-opened; suffice to observe that when it is established on the record that the **respondents** were appointed without adopting the due course of law and even their regularization is also fraught with illegalities, so they cannot claim immunity on account of past and closed transaction. It is an oft repeated principle of law that an illegal act cannot be protected or saved merely on the ground that much time has elapsed. Needless to observe that an illegal act would remain as such until its existence. It is also pertinent to mention here that it is duty of this Court being custodian of the **Constitution** to protect rights and interests established under the law and to stifle the enjoyment of rights claimed and created under an invalid law or through the misuse of legal authority. In nutshell, any action that is *void ab initio* and without lawful authority cannot be protected under the doctrine of “past and closed transaction”.

11. One of the arguments raised by learned counsel for the **respondents** is that matter in issue relates to terms and conditions of service of civil servants so in view of bar under Article 212 of the **Constitution**, this petition is not proceedable; I feel no hesitation to observe that this argument is merely trivial and trifling. The petitioners are though civil servants but they being whistleblowers are seeking writ of *quo warranto* challenging the very status of the **respondents** as civil servants and to hold the public office on the ground that their appointments and ultimately regularization is without lawful authority. The appointments of **respondents** against the posts were since through direct appointment, so it does not involve the question of terms and conditions of service of a civil servant, as the candidates seeking appointment would only attain the status of civil servant when they are inducted in the post in the service of Pakistan in accordance with law. Moreover issuance of writ of *quo warranto* is not within the domain of Service Tribunal established under Section 3 of the Service Tribunals Act, 1973.

Guidance in this respect can be sought from N.-W.F.P. PUBLIC SERVICE COMMISSION through Chairman and another versus Dr. SAMIULLAH KHAN and 2 others (1999 SCMR 2786).

12. Now mulling over the merits of the case it is noticed that the **respondents** were appointed on contract basis against the posts of BS-16 and above in pursuance to an advertisement published by the **Department** and in the process they joined the department in the year 2007. The service contracts of the **respondents** were extended from time to time and ultimately they were regularized in furtherance of approval of the cabinet sub-committee conveyed through Establishment Division's O.M. No.F.3/5/2011-Admn-1 dated 24th January, 2012. Before examining the legality and propriety of the decision of the cabinet sub-committee it would be apposite to first see the scheme of appointment of a civil servant, especially against the post BS-16 and above.

13. In order to regulate the appointment of persons to, and the terms and conditions of service of persons in, the service of Pakistan, and to provide for matters connected therewith or ancillary thereto the Civil Servants Act (LXXI of 1973), (hereinafter referred to as "**Act, 1973**") was promulgated. Section 5 of the **Act, 1973** postulates that appointments to an All-Pakistan Service or to a civil service of the Federation or to a civil post in connection with the affairs of the Federation including any civil post connected with defence, shall be made in the prescribed manner by the President or by a person authorized by the President in that behalf. Section 25 of the **Act, 1973** bestows power upon the President or any person authorized by the President in this behalf to make such rules as appear to him to be necessary or expedient for carrying out the purposes of the **Act, 1973**. In furtherance thereof, the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973 (hereinafter referred to as "**Rules, 1973**") were framed so as to regulate the method of appointment and promotion etc. of the civil servants. Rule 3 provides the methods of appointments to the posts, which reads as under :-

“3. (1) Appointments to posts shall be made by any of the following methods, namely:--

- (a) by promotion in accordance with Part II of these rules;
- (b) by transfer in accordance with Part II of these rules; and
- (c) by initial appointment in accordance with Part III of these rules.

(2) The method of appointment and the qualifications and other conditions applicable to a post shall be as laid down by the Ministry or Division concerned in consultation with the Establishment Division.

(3) Notwithstanding anything contained in sub-rule (1) or the method of appointment laid down in the recruitment rules, a person who is rendered surplus as a result of the reorganization or abolition of a Division, Department, Office or permanent post in pursuance of any Government decision or as a measure of economy may be appointed to a post in the basic pay scale to which he belonged, if he possesses the qualifications, and fulfills other conditions, applicable to that post.

(4) Where a person referred to in sub-rule (3),--

- (i) possesses educational qualifications which are considered interchangeable with, or equivalent to the qualification prescribed in the relevant recruitment rules; or
- (ii) fulfills the prescribed qualifications and the conditions for initial appointment to the post in relevant rules except the condition relating to prescribed experience, the appointing authority may, for reasons to be recorded in writing, relax the requirement of educational qualifications or as the case may be, the prescribed experience.”

(Underlining supplied for emphasis)

Rule 10 being component of Part III unequivocally and explicitly dictates that initial appointment in BS-16 and above are equivalent, except those which under the Federal Service Commission (Function) Rules, 1978 does not fall within the purview of **Commission**, shall be made on the basis of tests and examinations conducted by the **Commission**. Rule 11 on the other hand deals with the initial appointment to a post in basic pay scales 1 to 15 and equivalent, other than those mentioned in Rule 10 and mandates that it shall be made on the recommendation of the departmental selection committee after the wide publication of the vacancies in the newspaper. Rule 12 ordains that a candidate for initial appointment to a post must possess the prescribed educational qualifications and experience and that he or she must be within the prescribed age limit, except it otherwise provided in the rules framed for the purpose of relaxation thereof.

14. Article 242 of the **Constitution** commands and mandates that Majlis-e-Shoora (Parliament) in relation to the affairs of the Federation, and the Provincial Assembly of a Province in relation to the affairs of the Province, by law provide for the establishment and constitution of a Public Service Commission. The prime object and purpose of Article 242 of the **Constitution** is to ensure the transparency in the process of civil service. In furtherance of the mandate under Article 242 of the **Constitution**, **Ordinance** was promulgated and **Commission** was established. Section 7 of the **Ordinance** outlines the functions of the **Commission** to carry out the purpose and object of the **Ordinance**. In terms of the powers conferred upon the Federal Government by Section 10 of the **Ordinance** the Federal Public Service Commission (Functions) Rules, 1978 were framed. In terms of Rule 5, the **Commission** is empowered, on a reference made by the appointing authority, to test persons who may have been appointed to a civil post without observing the prescribed procedure or without fulfilling the prescribed qualifications, experience and age limits, and advise whether they are fit to hold the post to which they were appointed, and, if not, whether they are fit to hold any other civil post in the same or lower Basic Scale compatible with their qualifications and experience. The reference in terms of Rule 5 of the Rules *ibid* is to be made by the appointing authority under Section 11B of the **Act, 1973**, which for ready reference and convenience is reproduced below :-

“**11B.** (1) Where it is brought to the notice of the appointing authority that appointment of a person to a civil post was made without observing the prescribed procedure or without fulfilling the prescribed qualification, experience and age limit, it may send a reference to the Federal Public Service Commission for determination whether he is fit to hold the post to which he was appointed and, if not, whether he is fit to hold any other post compatible with his qualification and experience.

(2) On receipt of the advice of the Federal Public Service Commission on a reference made under sub-section (1), the appointing authority may pass such order of appointment or termination of service as may be considered by it to be just and equitable:

Provided that if it is proposed to pass order of termination of service in the light of the advice of the Commission, a

reasonable opportunity of showing cause against the order of termination, shall be provided.

(3) Where an order of appointment is made on the advice of the Commission, it shall be treated as a case of fresh appointment and seniority of such an appointee shall be determined in accordance with the Civil Servants (Seniority) Rules, 1993”

The **respondents** were admittedly not appointed in accord with the above noted provisions and even their cases were not referred by the appointing authority to the **Commission** as is required in terms of Section 11B of the **Act, 1973**. The regularization of service of the **respondents** by the cabinet sub-committee is apparently without any lawful backing on two fold grounds; firstly the initial appointment of the **respondents** was clearly fraught with illegalities and secondly for the purpose of their regularization in the service the procedure was to be followed in terms of the above noted provisions. Needless to observe that cabinet sub-committee was only having the mandate of examining the cases of employees of BS-1 to BS-15 and it was not vested with any power to regularize the service of the **respondents** in oblivious of the mandatory provisions of law.

15. In somewhat similar circumstances in the case of MOHSIN RAZA GONDAL and others versus SARDAR MAHMOOD and others (2025 SCMR 104) the Supreme Court of Pakistan held as under :-

“13. Article 90 of the Constitution provides that the executive authority of the Federation shall be exercised in the name of the President by the Federal Government, which includes the Prime Minister and Federal Ministers but the said authority has to be exercised subject to the Constitution. It means that whenever the authority is exercised, it has to be within the limits prescribed by the Constitution. Article 90 of the Constitution is reproduced here under: -

"90. The Federal Government.---(1) Subject to the Constitution, the executive authority of the Federation shall be exercised in the name of the President by the Federal Government, consisting of the Prime Minister and the Federal Ministers, which shall act through the Prime Minister, who shall be the Chief Executive of the Federation.

(2) In the performance of his functions under the Constitution, the Prime Minister may act either directly or through the Federal Ministers."

The Cabinet is a component of the Federal Ministers and Advisers who are appointed under Article 91 of the Constitution which reads as under: -

"91. The Cabinet.---(1) There shall be a Cabinet of Ministers, with the Prime Minister at its head, to aid and advise the President in the exercise of his functions."

Under Article 99(2) of the Constitution, the Federal Government is obliged to specify the manner by rules in which orders and other instruments are to be made and executed which is reproduced as under:-

'99. Conduct of business of Federal Government.---

(1)

(2) The (Federal Government) shall by rules specify the manner in which orders and other instruments made and executed (in the name of the President) shall be authenticated, and the validity of any order or instrument so authenticated, and the validity of any order or instrument so authenticated shall not be questioned in any court on the ground that it was not made or executed by the President.'

It is abundantly clear from the above constitutional provisions that neither the Prime Minister nor the members of the Federal Cabinet are permitted to perform their functions beyond the legal provisions i.e. the Constitution, statutory law, and the rules. Needless to mention, nobody is above the law. That is why the Rules of Business, 1973, were duly framed to conduct the business of the Federal Government. Under these rules, although there is a concept of Cabinet Sub-Committees on different subjects, there is no provision for the intervention of a Cabinet Sub-Committee in governing the terms and conditions of service of employees. However, the Cabinet Sub-Committee can recommend reforms in the service structure, which can be approved by the Cabinet in accordance with the law and the Constitution. As, the Cabinet Sub-Committee lacks the authority to recommend the regularization of posts in BS-16 and above, therefore, any recommendation by the Cabinet Sub-Committee to regularize appointments in BS-16 and above is *void ab initio* and without any lawful authority. We believe it is our duty to protect rights and interests established under the law and to prevent the enjoyment of rights created under an invalid law or through the misuse of legal authority. Reference may be made to the case of Shahid Pervaiz v. Ejaz Ahmad and others (2017 SCMR 206). In this backdrop, any action that is *void ab initio* and without lawful authority cannot be protected under the doctrine of a '*past and closed transaction*,' as vehemently argued by the petitioners. The High Court, in recognizing this legal principle, correctly declared that the appointments of the petitioners were not made in accordance with the law and referred their cases to the FPSC."

16. After arriving at the definite conclusion that the very appointment and regularization of the **respondents** is tainted with illegalities and without lawful authority, the question before the Court is that when apparently there was no fault of the **respondents** in the process of appointment or even regularization so at this

belated stage penalizing them by scratching their appointments and regularization with one stroke of pen would not be in the ends of justice, especially when there is no serious challenge qua their qualifications and eligibility at the time of initial appointment. It would thus be in all fairness that their cases be referred to the **Commission** with the direction to determine their fitness and eligibility under the law.

17. In the wake of above discussion this petition is **partly allowed** with the direction to the official respondents/departments (appointing authority) that the cases of the **respondents** be referred to the **Commission** in terms of Section 11-B of the **Act, 1973** who shall then proceed according to law with no order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

Dictated
05.05.2025

Signed
19.05.2025

Announced in open Court on 19.05.2025.

JUDGE

APPROVED FOR REPORTING

JUDGE

*Shahbaz Ali**